

May 11, 2026
Dept. 9
Probate Tentative Rulings

1.	23PR0092	MATTER OF AESCHLIMAN LIVING TRUST
Petition to Remove Trustee		

Petitioner Randall Aeschliman ("Randy"), is an interested person with respect to the Dale Aeschliman Living Trust established September 30, 2020 (the "Trust"). Petitioner brings this petition under Probate Code §§ 17200 and 15642 for an order removing the current trustee, Amber Peters (former professional fiduciary), and appointing Petitioner as successor trustee.

Petitioner is not named as a beneficiary under the Trust instrument, but his right to distribution arises under a written settlement agreement approved by this Court on March 12, 2024 resolving litigation concerning the validity and disposition of the Trust.

Pursuant to the settlement, the trustee was directed to:

- a. Distribute the cash sum of \$50,000 to the Settlor's caretaker and named beneficiary under the Trust, Taylor Northern ("Taylor");
- b. Retain a reserve of \$60,000 solely for payment of final administrative expenses and taxes; and
- c. Distribute the remaining trust estate equally to Settlor's children, Randy Aeschliman and Mark Aeschliman.

Petitioner states that the initial distributions were made, but not the final distribution of the reserve. Mark Aeschliman is now deceased, and was not survived by his spouse. The trustee has not communicated with Petitioner for over a year and has not responded to his attempts to contact her.

The Trust instrument provides a method for succession of trustees. The instrument names Amber Peters as trustee and further names Kathryn Cain, a licensed professional fiduciary, as successor trustee if Ms. Peters is unable or unwilling to act. Ms. Cain has declined to serve. (Exhibit 4). Petitioner seeks to be appointed, with bond waived.

Petitioner requests that the Court:

1. Find that notice has been given as required;
2. Remove Amber Peters as trustee of the Dale Aeschliman Living Trust dated September 30, 2020;
3. Appoint Randall Aeschliman as successor trustee;
4. Waive bond;

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5. Order Amber Peters to deliver to the successor trustee within 30 days all Trust assets, records, accounts, and information in her possession or control;

6. Authorize the successor trustee to administer the Trust, prepare a final accounting, and make final distributions consistent with the Court-approved settlement agreement; and,

7. Grant such other and further relief as the Court deems proper.

There is no objection nor any response by the trustee.

TENTATIVE RULING #1:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.